

		contingent nature of fee award is relevant where it is “uncertain that the attorneys would be entitled to an award of fees even if they prevailed.” (<i>Weeks v Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1175.) On the other hand, the contingent nature is not generally sufficient where contingency is limited to whether or not the party will prevail. (<i>Id.</i>, at pp. 1174-1175.) A multiplier is more typically seen in cases where counsel undertakes a difficult case in the public interest, not a personal injury case brought by a single plaintiff to recover her own economic damages. (<i>Id.</i>, at p. 1174.) Here, the relevant factors do not support a multiplier. Plaintiff has not shown that the issues were novel or difficult, that the litigation required exceptional skill, or that the contingent risk exceeded the ordinary risk of nonrecovery. The case resolved before trial and did not involve complex proceedings or broader public-interest concerns. The Court therefore declines to apply a multiplier. <u>Total Award</u> The Court reduces the requested lodestar by \$1,312.50 (reflecting a 2.5-hour reduction in the requested fee-motion time at Urner’s \$525 hourly rate). The Court finds the resulting lodestar of \$17,534.00 reasonable and declines to apply the requested 0.3 enhancement. Costs will be determined through the memorandum-of-costs procedure. (See Code Civ. Proc., § 1032; Cal. Rules of Court, rule 3.1700(a)(1).) Accordingly, Plaintiff is awarded \$17,534.00 in attorney fees. Moving party to give notice
7.	2025-1501406 You vs. Mercedes-Benz USA LLC	<i>No tentative</i>
8.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	The Court grants Plaintiffs and Cross-Defendants Centennial Bolt, Inc. (“Centennial”) and Mark Cordova’s (“Mark”) Motion for attorney’s fees pursuant to Code of Civil Procedure section 425.16 for prevailing on their Special Motion to Strike (“Anti-SLAPP”). The Court awards Centennial and Mark the amount of \$62,886 in fees against Plaintiff and Cross-Defendant Cordova Bolt. <u>Legal Standard</u> A “prevailing defendant” (or cross-defendant) on an anti-SLAPP motion “shall be entitled to recover his or her attorney fees and costs.” (Code Civ. Proc., § 425.16, subd. (c)(1); <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1133.)

Mandatory attorney's fees awarded under Code of Civil Procedure 425.16, subdivision (c), are those fees that the court deems reasonable. (*Ibid.*) Courts generally use a "lodestar" approach (i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate prevailing in the community for similar work) in setting an attorney's fee award under Code of Civil Procedure section 425.16. (*Id.* at p. 1136.)

Mark and Cordova are the prevailing parties on their Anti-SLAPP Motion

Here, Centennial Bolt and Mark prevailed on his Anti-SLAPP Motion in part. (ROA 200.) In the SLAPP Motion, Centennial sought to strike eight paragraphs from Cordova Bolt's 69-paragraph cross complaint (paragraphs 18, 19, and 64-69 which asserted the fraud claim) and eliminate four lines from paragraph 30, part of Centennial's claim for breach of fiduciary duty. The Court did not strike these paragraphs, instead striking two paragraphs from the general allegations, paragraphs 18 and 19, and modifying two more.

In opposition, Cordova Bolt argues that the Anti-SLAPP was not granted in its entirety, and really struck nothing of importance. Cordova Bolt argues that the "win" was illusory at best. Cordova Bolt cites to *Moran v. Endres* (2006) 135 Cal.App.4th 952 as instructive. There, defendants sought to dismiss the entire complaint, and instead obtained only the "most illusory victory". (*Moran v. Endres* (2006) 135 Cal.App.4th 952, 954.)

However, the Supreme Court has made clear that a special motion to strike may be directed to specific allegations of protected activity constituting a claim for relief within a pleaded count that also includes allegations of unprotected activity. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 395 ["When the Legislature declared that a 'cause of action' arising from activity furthering the rights of petition or free speech may be stricken unless the plaintiff establishes a probability of prevailing, it had in mind allegations of protected activity that are asserted as grounds for relief."]; see *Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 51 ["Because Baral permits a court to grant or deny an anti-SLAPP motion to specific allegations and claims arising from them, it anticipates a situation, such as here, in which the defendant prevails in part, and the plaintiff prevails in part, on an anti-SLAPP motion," thus allowing the trial court to determine whether one of the parties is entitled to an anti-SLAPP fee award.])

Thus, striking allegations from the Cross-Complaint was not an illusory victory after *Barnal*. Centennial and Mark succeeded in narrowing the factual basis for Cordova's claims.

The Court therefore finds Centennial and Mark to be the prevailing parties and therefore entitled to some fees.

Amount

To determine the appropriate fee award under the anti-SLAPP statute, the court applies the lodestar method. “The California Supreme Court has upheld the lodestar method for determining the appropriate amount of attorney fees for a prevailing defendant on an anti-SLAPP motion.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 342 [citing *Ketchum v. Moses, supra*, 24 Cal.4th at 1136].) Because Code of Civil Procedure section 425.16(c) is intended to compensate a defendant for the expense of responding to a SLAPP suit, the provision is broadly construed so as to effectuate the legislative purpose of reimbursing the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit. (*Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 22.)

The court has broad authority to determine the amount of reasonable fees. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) A reasonable fee is determined in the trial court’s discretion. (*Id.* at p. 1096; *Barlin v. Barlin* (1957) 156 Cal.App.2d 143.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1096.) Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, over-staffing, duplication or marked inefficiency. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 272.)

Other factors courts consider include the development of the case, the complexity of the issues, and how long the court estimates it should have taken to perform the services. (*Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) After the courts determine the number of hours reasonably necessary to the conduct of litigation, the next step is to determine an appropriate hourly rate for the work performed, based on market trends in the particular region for that kind of work. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619; *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260.)

Reasonable Hourly Rate

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. This standard applies

regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (*PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1094.) To determine that reasonable market value, the court must determine whether the requested rates are within the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (*Children’s Hospital & Medical Center v. Bonta* (2002) 97 Cal.App.4th 740, 783.) Some of the factors to be considered in determining whether counsel’s rates are reasonable include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by counsel; and (3) the contingent nature of the fee award. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) Additional factors that may be considered include the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.)

The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (*See Davis v. City of San Diego* (2003) 106 Cal.App.4th 893, 903.)

Here, Counsel Douglas Hedenkamp billed at \$880 per hour and Tyler Palmer billed at \$550 per hour. These rates are within the range of reasonable for litigation of this type in Orange County.

Hours Reasonably Expended

In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Actual time records need not be submitted so long as the court has sufficient and reliable information upon which to exercise its discretion. (*Raining Data Corp. v. Barrenechea* (2009) 174 Cal.App.4th 1363, 1375 [stating records not required and finding counsel declarations describing work and hours expended by category sufficient]; *Syers Properties III, Inc. v Rankin* (2014) 226 Cal.App.4th 691, 698-699.)

Here, Counsel provides billing statements to show the time spent on the Anti-SLAPP and this Motion.

Moving Parties were only *partially* successful on their Anti-SLAPP Motion, not eliminating any causes of action. (*See ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1016–1021, “The

		approach adopted in the cases applying those analogous statutes, under which partial success reduces but does not eliminate the entitlement to attorney fees, therefore should be applied here.”; <i>see also Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 345.) Based on the court’s own knowledge, the nature of the work performed in this case, and the evidence provided by the parties, the Court reduces the requested amount of fees for work on unsuccessful claims and some duplication of effort between the two billing attorneys. The Court finds that \$62,886 fairly compensates Cross-Defendants for the results achieved in pursuing the Anti-SLAPP motion and avoids reimbursing them for the objectives that were not attained. Centennial and Mark are ordered to serve notice.
10.	2025-1521814 Nguyen vs. Nguyen	Plaintiff Paul Nguyen’s motion for summary adjudication on his second amended complaint (“SAC”) against defendants Julie H. Dao and JD Escrow is continued to October 14, 2026. No later than September 25, 2026, Plaintiff is to file a revised separate statement of material undisputed facts in compliance with Code of Civil Procedure section 437c(b)(1) and CRC 3.1350(d), (h). Defendants may file a response to the revised separate statement no later than October 2, 2026. Code of Civil Procedure section 437c(b)(1) requires each motion for summary judgment or adjudication to be accompanied by a separate statement “setting forth plainly and concisely all <i>material facts</i> that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.” (Italics added.) California Rules of Court, rule 3.1350(d)(2) states: “The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.” Under the Rules of Court, “Material facts’ are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.” CRC 3.1350(a)(2). CRC 3.1350 also sets forth the required form of the separate statement. Each verbatim restatement of an issue for summary adjudication is to be directly followed by the material facts and supporting evidence the moving party relies on for summary adjudication of that issue. CRC 3.1450(d)(1) and (3), (h). Plaintiff’s separate statement does not comply with these directives.